

DELIVEROO RESTAURANT TERMS AND CONDITIONS

DELIVEROO RESTAURANT TERMS AND CONDITIONS

TERMS AND CONDITIONS

1. Contract structure and Services

- 1.1 These Terms together with the Service Pack and the Deliveroo Policies (including Deliveroo's ranking policy, access to data policy and support policy for managing complaints and queries) govern the overall relationship of the parties in relation to the Services supplied by Deliveroo. The Restaurant may procure Services by agreeing the relevant Service Pack(s) with Deliveroo.
- 1.2 Each Service Pack shall be entered into by the Restaurant and Deliveroo and, together with these Terms and the Deliveroo Policies, forms a separate agreement between its signatories.
- 1.3 If there is an inconsistency between these Terms and the terms of a Service Pack or the Deliveroo Policies, the provisions of each shall prevail in the following order of precedence, the Terms (except to the extent explicitly stated otherwise in the relevant Service Pack), then the Service Pack and then the Deliveroo Policies. Unless the context otherwise requires, or otherwise specified, capitalised terms used in the Agreement shall have the meaning given to them in Schedule 1 to these Terms.
- 1.4 The Agreement, constituted by these Terms, the Deliveroo Policies and the relevant Service Pack, takes precedence over any terms and conditions contained or referred to in any documentation submitted by the Restaurant or in correspondence (written or oral), purchase orders or elsewhere and any contrary provisions shall have no effect.
- 1.5 Deliveroo reserves the right to amend the Agreement if necessary to comply with any Applicable Law, or if the amendment will not materially affect the nature or quality of the Services. Deliveroo shall promptly notify the Restaurant in writing of any such amendment at least 15 days prior to the amendment taking effect, except where permitted under Applicable Law to provide a shorter notice period.

2. Commencement and Term

- 2.1 The Agreement shall commence on the Commencement Date and shall continue, unless otherwise terminated earlier in accordance with clause 11 or the relevant Service Pack, until the expiry of the term set out in the Service Pack ("**Term**").

3. Deliveroo's obligations

- 3.1 Deliveroo shall use reasonable endeavours to provide the Services:
- (a) in all material respects in accordance with the Service Pack including the service description set out in the relevant Service Pack; and
 - (b) to meet or exceed the applicable Deliveroo Service Levels.

- 3.2 Deliveroo shall perform the Services with reasonable care and skill.

4. Restaurant's obligations

- 4.1 The Restaurant shall:
- (a) act reasonably and in good faith and co-operate with Deliveroo in all matters relating to the Services;
 - (b) provide, in a timely manner, such assistance and information as Deliveroo may reasonably require, and ensure that the information it provides is not misleading and is complete and accurate in all material respects;
 - (c) use reasonable endeavours to perform its obligations to meet or exceed the applicable Restaurant Service Levels; and
 - (d) comply with Deliveroo Policies.

5. Service Levels

- 5.1 If either party fails to meet or exceed an applicable Service Level ("**Service Level Failure**") for a period of 3 consecutive calendar months or any 3 calendar months in a 4 month period, the matter shall be escalated to the Nominated Representative of each party who, acting reasonably, shall meet as soon as reasonably practicable to discuss and agree the remedial actions required to remedy the Service Level Failure. If the Nominated Representatives of each party are unable to agree on the required remedial actions, the matter shall be subject to the dispute resolution procedure set out in clause 13.5.

6. Pricing and Payment

- 6.1 The consideration for any supply made under the provisions of these Terms and set out in the Service Pack is an amount exclusive of any applicable VAT. The supplier of any supplies made under these Terms and the Service Pack shall be entitled to charge any applicable VAT in addition to any consideration set out in the Service Pack.
- 6.2 The Restaurant shall pay the Fees to Deliveroo in accordance with the provisions of this clause 6 and the Service Pack.
- 6.3 Without prejudice to clause 13.12 of these Terms, if in relation to any calendar month the Fees are for a higher amount than the Menu Items Amount, the Restaurant shall pay to Deliveroo the amount by which the Fees are higher within 30 days of the date of Deliveroo's invoice.

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| <p>6.4 If a party fails to pay any sum payable by it under the Agreement on the due date for payment, it shall pay interest on such sum for the period from and including the due date up to the date of actual payment (after as well as before judgment) at the rate which is the aggregate of 2% per annum and the base rate from time to time of Barclays Bank plc. The interest will accrue from day to day on the basis of the actual number of days elapsed and a 365-day year and shall be payable on demand and compounded monthly in arrear.</p> <p>7. Marketing</p> <p>7.1 Provided Deliveroo obtains the prior written consent of the Restaurant, Deliveroo may use the Restaurant Branding in any of its marketing materials (including in print or broadcast media, via the internet or mobile apps and on social media networks) and on the Platform and may expressly indicate in any such marketing that the Restaurant is available to Customers on the Platform.</p> <p>8. Intellectual property</p> <p>8.1 Except as expressly set out in the Agreement:</p> <ul style="list-style-type: none"> (a) Deliveroo and its licensors shall retain ownership of, and the Restaurant shall not acquire any right, title or interest in or to, the Deliveroo IPRs; and (b) the Restaurant and its licensors shall retain ownership of, and Deliveroo shall not acquire any right, title or interest in or to, the Restaurant IPRs. <p>8.2 Deliveroo grants the Restaurant a non-exclusive, royalty-free, non-transferable licence to use the “Deliveroo” logo, name and/or website address (the “Deliveroo Branding”) for the Term in the Territory for the purposes of advertising the fact Deliveroo or its Affiliates provides the Services to the Restaurant. Deliveroo shall provide to the Restaurant the Deliveroo Branding for this purpose and the Restaurant shall not use any other logos, images or artwork to advertise its partnership with Deliveroo. Without prejudice to clause 4.1(d), the Restaurant shall comply with any Deliveroo branding policy issued to it from time to time.</p> <p>8.3 The Restaurant grants Deliveroo and its Affiliates a non-exclusive, royalty-free licence to use the Restaurant’s logos, name and website address(es) (the “Restaurant Branding”) for the Term in the Territory:</p> <ul style="list-style-type: none"> (a) on the Platform; (b) for the purposes referred to in clause 7; and (c) as otherwise reasonably necessary or desirable for the purposes of providing the Services to the Restaurant, subject to Deliveroo obtaining the prior written approval of the Restaurant for such use. <p>8.4 Deliveroo warrants and undertakes that the Deliveroo Branding does not and will not infringe the Intellectual Property Rights of any third party.</p> | <p>8.5 The Restaurant warrants and undertakes that the Restaurant Branding does not and will not infringe the Intellectual Property Rights of any third party.</p> <p>8.6 The Restaurant shall indemnify Deliveroo and its Affiliates in full against all Losses suffered or incurred by Deliveroo or its Affiliates arising out of or in connection with any claim brought against Deliveroo or any of its Affiliates for alleged or actual infringement of a third party's rights (including any Intellectual Property Rights) arising out of, or in connection with, the Restaurant Branding.</p> <p>8.7 Deliveroo shall indemnify the Restaurant in full against all Losses suffered or incurred by the Restaurant arising of or in connection with any claim brought against the Restaurant for alleged or actual infringement of a third party's rights (including any Intellectual Property Rights) arising out of, or in connection with, the Deliveroo Branding.</p> <p>9. Liability and Indemnity</p> <p>9.1 Nothing in the Agreement will limit or exclude a party’s liability for: (a) death or personal injury caused by negligence, or the negligence of its employees, agents or subcontractors; (b) fraud or fraudulent misrepresentation; or (c) any other liability to the extent the same cannot be excluded or limited by law.</p> <p>9.2 Subject to clause 9.1, neither party shall have any liability to the other whether in contract, tort (including negligence), breach of statutory duty, or otherwise, arising out of or in connection with the Agreement for any: (a) loss of profits; (b) loss of sales or business; (c) loss of agreements or contracts; (d) loss of anticipated savings; (e) loss of or damage to goodwill; and (f) loss of use or corruption of software, data or information, in each case, whether direct or indirect, or for any special, indirect or consequential loss.</p> <p>10. Data Protection</p> <p>10.1 The parties shall comply with their obligations, and have their rights, as set out in Schedule 2 to these Terms.</p> <p>11. Termination</p> <p>11.1 Without affecting any other right or remedy available to it, Deliveroo may terminate the Agreement upon written notice with immediate effect unless otherwise specified in the notice:</p> <ul style="list-style-type: none"> (a) if the Restaurant breaches clauses 8.5 or 12.2; (b) if Deliveroo is subject to a legal or regulatory obligation which requires it to terminate the Agreement; (c) if the Restaurant has repeatedly breached the terms of this Agreement; or |
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	(d) if there is any other imperative reason pursuant to Applicable Law.	12.	Compliance with law
11.2		12.1	Each party shall in performing their obligations under the Agreement comply with all Applicable Laws.
11.3	Without affecting any other right or remedy available to it, either party may terminate the Agreement by giving 30 days' prior written notice to the other party if: (a) the other party is in material breach of any of its obligations under the Agreement and if such breach is capable of remedy, has not been remedied to the satisfaction of the non-breaching party within 14 days of notice of such breach from the non-breaching party; (b) the other party enters administration, becomes insolvent or makes any composition or arrangement with its creditors in general; (c) the other party suspends, or threatens to suspend, or ceases or threatens to cease to carry on all or a substantial part of its business; or (d) the other party's financial position deteriorates to such an extent that in the terminating party's opinion the other party's capability to adequately fulfil its obligations under the Agreement has been placed in jeopardy.	12.2	Anti-Bribery and Corruption. Without prejudice to the generality of clause 12.1: (a) the Restaurant warrants that it has not done, and in performing its obligations under the Agreement, the Restaurant shall not do, any act or thing that contravenes Anti-Bribery Law; (b) the Restaurant warrants and undertakes that it shall (without prejudice to clause 4.14.1(c)) comply with, and shall procure that its personnel involved in performing the Agreement shall comply with any of Deliveroo's anti-bribery policies made available to the Restaurant from time to time; and (c) the Restaurant shall immediately notify Deliveroo in writing on becoming aware of, or suspecting, any failure to comply with any provision of this clause 12.
11.4	Without affecting any other right or remedy available to it, in the event Deliveroo amends the terms of this Agreement then the Restaurant may terminate this Agreement with immediate effect upon giving written notice to Deliveroo, provided that: (a) the Restaurant's notice is received by Deliveroo prior to the later of: (i) the amendment taking effect; or (ii) 15 days after Deliveroo's amendment notice; and (b) the Restaurant has not already waived such termination right by affirming its acceptance of the amendment.	12.3	Anti-Slavery. Each party shall comply, and procure that all its employees, contractors, agents and representatives comply, with Anti-Slavery Law, as relevant to the Services and the sourcing, preparation and supply of the Menu Items and the activities of the parties under the Agreement. The Restaurant shall use reasonable endeavours on a continuing basis to ensure that Slavery is not taking place in its supply chains.
		13.	General
		13.1	Force majeure. Neither party shall be in breach of the Agreement nor liable for delay in performing, or failure to perform, any of its obligations under the Agreement if such delay or failure results from events, circumstances or causes beyond its reasonable control.
11.5	The parties acknowledge and agree that a court order will not be required to give effect to any termination of this Agreement.	13.2	Further assurance. Each party shall (at its own cost) do, execute or procure to be done and executed all acts, deeds, documents and things as are reasonably necessary or desirable to give full effect to the Agreement (including the terms regarding Intellectual Property Rights).
11.6	On termination of the Agreement for whatever reason: (a) each party shall promptly and in any event within ten (10) Business Days pay to the other party all of the sums owed to that party, calculated in accordance with clause 6 and the Service Pack; and (b) termination of the Agreement shall not affect any of the rights, remedies, obligations or liabilities of the parties that have accrued up to the date of termination, including the right to claim damages in respect of any breach of the Agreement which existed at or before the date of termination.	13.3	Assignment and other dealings. The Restaurant may not assign, transfer, charge or deal in any way with the benefit of, or any of its rights under or interest in, the Agreement without Deliveroo's prior written consent. Deliveroo may assign the benefit of, and any of its rights under, the Agreement together with any cause of action arising in connection with any of them to its successor in title, to any of its Affiliates or to any purchaser or transferee from it or any of them.
		13.4	Confidentiality. (a) Each party undertakes that it shall not at any time during the Agreement, and for a period of 3 years after termination or expiry of the Agreement, disclose to any person any confidential information concerning the business, affairs, customers,

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clients or suppliers of the other party or its Affiliates, except as permitted by clause 13.4(b).

- (b) Each party may disclose the other party's confidential information:
 - (i) to its employees, representatives, service providers, subcontractors or professional advisers ("**Relevant Personnel**") who need to know such information for the purposes of carrying out or advising on the party's rights or obligations under the Agreement. Each party shall ensure that its Relevant Personnel to whom it discloses the other party's confidential information comply with the obligations of confidentiality under this clause 13.4;
 - (ii) to the taxation authority in the Territory or any other relevant authority in order to obtain tax or other clearances or consents; and
 - (iii) as may be required by Applicable Law, a court of competent jurisdiction or any governmental or regulatory authority.
- (c) Clause 13.4(a) shall not apply to confidential information which was in the public domain before it was provided or made available to the relevant party or, after it was provided or made available to that party, entered the public domain otherwise than as a result of: (i) a breach by that party of this clause 13.4 or Schedule 2 to these Terms; or (ii) a breach of a confidentiality obligation by the discloser, where the breach was known to that party.
- (d) Neither party shall use any other party's confidential information for any purpose other than to understand, or exercise or perform, its rights or obligations under the Agreement.

13.5 **Dispute Resolution.**

- (a) In the event the Restaurant has a complaint or wishes to raise a dispute in connection with the Agreement or its performance, validity or enforceability ("Dispute") then, except as expressly provided in the Agreement, the Restaurant shall raise the Dispute for resolution in accordance with the Restaurant Support Policy, which includes appropriate steps to resolve the dispute including, where necessary, use of an independent mediator in the event the parties are not able to resolve the Dispute between them.
 - (i)
- (b) if the parties reach a settlement, such settlement shall be reduced to writing and, once signed by an authorised representative of each of the parties, shall be and remain binding on the parties.
- (c) The procedure in this clause 13.5 (if used) shall be binding on the parties with regard to participation in a mediation but not as to its outcome. All negotiations connected with the Dispute shall be conducted in strict confidence and without prejudice to the rights of the parties in any legal proceedings.
- (d) Nothing in clauses 13.5(a) shall restrict either party from seeking any equitable remedy in the courts in accordance with clauses 13.15 and 13.16.

13.6 **Entire agreement.** The Agreement constitutes the entire agreement between the parties and supersedes and extinguishes all previous agreements, promises, assurances, warranties, representations and understandings between them, whether written or oral, relating to its subject matter.

13.7 **Variation.** Unless otherwise specified in this Agreement and subject to clause 1.5, no variation of the Agreement shall be effective unless it is in writing and signed by the parties (or their authorised representatives).

13.8 **Waiver.** No failure or delay by a party in exercising, or any single or partial exercise on an earlier occasion of, any right or remedy provided by law or under the Agreement shall impair the right or remedy, or operate as a waiver or variation of it, or preclude its exercise at any subsequent time or the exercise of any other right or remedy.

13.9 **Severance.** If any provision or part-provision of the Agreement is or becomes invalid, illegal or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, legal and enforceable. If such modification is not possible, the relevant provision or part-provision shall be deemed deleted. Any modification to or deletion of a provision or part-provision under this clause shall not affect the validity and enforceability of the rest of the Agreement.

13.10 **No partnership.** Nothing in the Agreement and no action taken by the parties pursuant to the Agreement shall constitute or be deemed to constitute a partnership, association, joint venture or other co-operative entity between the parties and neither of the parties shall have any authority to bind the others in any way except as provided in the Agreement.

13.11 **Notices.**

- (a) Any notice or other communication given to a party under or in connection with the Agreement shall be in writing, addressed to the relevant party's Nominated Representative at the address of the party specified in the Cover Sheet of the Service Pack, and shall be: (i) delivered personally or sent by courier; or (ii) sent by email to the email address specified in the Cover Sheet to the Service Pack. Any notice or other communication shall be deemed to have been received: (i) if delivered personally, when left at the address of the party specified in the Cover Sheet to the Service Pack, or if sent courier, at 09:00am on the second Business Day after posting;; and (iii) if sent by email, at the time of transmission, or, if this time falls outside business hours in the place of receipt, when business hours resume. In this clause, business hours means 9.00am to 5.00pm on a Business Day.
- (b) This clause does not apply to the service of any proceedings or other documents in any legal action or, where applicable, any arbitration or other method of dispute resolution.

13.12 **Set Off.** Deliveroo may set off any amount owed by the Restaurant to Deliveroo or its Affiliates against any amount due to the Restaurant (including the Restaurant Payment) under the Agreement or any other agreement between the Restaurant and Deliveroo or any of its Affiliates.

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- 13.13 **Third party rights.** Except to the extent (if any) it expressly states otherwise, the Agreement does not give rise to any rights to any party who is not an express party to this Agreement. The rights of the parties to rescind or vary this Agreement are not subject to the consent of any other person.
- 13.14 **Counterparts.** The Agreement may be executed in any number of counterparts, each of which when executed shall constitute a duplicate original, but all the counterparts shall together constitute one agreement.
- 13.15 **Governing law.** The Agreement, and any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with it or its subject matter or formation, shall be governed by, and construed in accordance with the laws of the DIFC .

- 13.16 **Jurisdiction.** Each party irrevocably agrees that the courts of the DIFC shall have exclusive jurisdiction to settle any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with the Agreement or its subject matter or formation.

Schedule 1 Definitions

1. Interpretation:

- 1.1 In the Agreement a reference to **writing** or **written** includes email.
- 1.2 In the Agreement, the following capitalised terms have the following meanings:
- 1 **“Affiliate”** means in relation to a party any other entity which directly or indirectly Controls, is Controlled by, or is under direct or indirect common Control with, that party from time to time;
- 2 **“Agreement”** means these Terms, the Deliveroo Policies and the relevant Service Pack.
- 3 **“Additional Services”** means any additional services that the parties agree that Deliveroo will provide to the Restaurant.
- 4 **“Applicable Law”** means all applicable federal, emirate and free-zone laws, enactments, decrees, orders (having the force of law), regulations, regulatory policies and guidelines, industry codes, regulatory permits and licences which are in force, and any applicable requirement of any person who has regulatory authority that has the force of law.
- 5 **“Anti-Bribery Law”** means all Applicable Laws, codes and sanctions relating to the prevention, prohibition or outlawing of bribery, money laundering, or similar and illegal activities, in the Territory or any other jurisdiction relevant to the performance of the Services;
- 6
- 7 **“Anti-Slavery Law”** means all Applicable Laws, codes and sanctions relating to the prevention, prohibition and/or outlawing of Slavery in the Territory or any other jurisdiction relevant to the performance of the Agreement.
- 8 **“Business Day”** means a day other than a Friday or Saturday or public or religious holiday in the United Arab Emirates , when banks in the Emirate of Dubai are open for business.

- 9 **“Commencement Date”** means the date of the Cover Sheet to the Service Pack (or such other date for commencement of the Agreement as may be specified in the Service Pack).

- 10 **“Complaints Matrix”** means the complaints matrix provided or made available by Deliveroo to the Restaurant from time to time.

- 11 **“Control”** means, in relation to a person, the direct or indirect ownership of more than fifty per cent (50%) of the voting capital or similar right of ownership of that person or the legal power to direct or cause the direction of the general management and policies of that person whether through the ownership of voting capital, by contract or otherwise, and "Controls" and "Controlled" shall be interpreted accordingly and the expression change of Control shall be construed accordingly.

- 12 **“Customer”** means a user of the Platform.

- 13 **“Deliveroo”** means Roofoods, or, if Roofoods is not the signatory to the relevant Service Pack, the relevant Roofoods Affiliate that is the signatory to that Service Pack.

- 14 **“Deliveroo IPRs”** means: (a) all Intellectual Property Rights owned or controlled by Deliveroo prior to the Commencement Date, including all Intellectual Property Rights relating to the Platform; and (b) all Intellectual Property Rights created after the Commencement Date by or on behalf of Deliveroo in connection with or for the purpose of the performance of its obligations under the Agreement, and all developments, enhancements and derivatives of those Intellectual Property Rights.

- 15 **“Deliveroo Policies”** means Deliveroo’s ranking policy, access to data policy, support policy equipment policy, photography policy, branding policy, anti-bribery and anti-slavery policies, and any other policies with which Deliveroo requires the Restaurant to comply, as available on the Restaurant Help Page or from Deliveroo upon request and as Deliveroo may update and supplement from time to time on written notice in accordance with Applicable Law.

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16 **“Deliveroo Service Levels”** means the service levels applicable to Deliveroo as set out in the relevant Service Pack.

17 **“Delivery Services”** means the delivery of Orders from the Restaurant to the Customer by riders provided by Deliveroo.

18 **“DIFC”** means the Dubai International Financial Centre.

19 **“Equipment”** means the touch screen terminal and thermal printer, or such other equipment or device, supplied by Deliveroo to the Restaurant or by the Restaurant itself (as specified in the relevant Service Pack), for the purposes of accepting and labelling Orders (excluding the Software).

20 **“Fees”** means the fees payable to Deliveroo as set out in the Service Pack.

21 **“Intellectual Property Rights”** or **“IPRs”** means patents, rights to inventions, copyright and related rights, moral rights, trade marks and service marks, business names and domain names, rights in get-up and trade dress, goodwill and the right to sue for passing off or unfair competition, rights in designs, rights in computer software, database rights, rights to use, and protect the confidentiality of, confidential information (including know-how and trade secrets) and all other intellectual property rights, in each case whether registered or unregistered.

22 **“Losses”** means actions, proceedings, losses, damages, liabilities, claims, demands, judgments (however obtained), costs, expenses, and any other diminution in value of any description, including fines, interest, penalties, clean-up costs, legal and other professional fees incurred in connection with investigating or defending any claim, action, demand or proceedings.

23 **“Menu Items”** means items displayed on the Platform on behalf of the Restaurant which may be ordered by a Customer.

24 **“Nominated Representative”** means the nominated representative of each party set out in the Cover Sheet to the Service Pack.

25 **“Order”** means an order placed by a Customer for Menu Items via the Platform.

26 **“Parties”** or **“parties”** means the parties to the Service Pack (and **“party”** shall be construed accordingly).

27 **“Platform”** means any Deliveroo affiliated websites, ordering platforms and mobile applications as Deliveroo may make available in the Territory from time to time.

28 **“Rating”** means the average feedback rating given by Customers for the Restaurant on the Platform.

29 **“Relationship Manager”** means the person of appropriate seniority for the relationship of the parties nominated as the first escalation point for a Dispute pursuant to clause 13.5(a)(ii).

30 **“Restaurant IPRs”** means all Intellectual Property Rights owned or controlled by the Restaurant prior to the Commencement Date.

31 **“Restaurant Payment”** has the meaning given to it in the Service Pack.

32 **“Restaurant Service Levels”** means the service levels applicable to the Restaurant as set out in the relevant Service Pack.

33 **“Roofoods”** means Roofoods Limited, having its registered office at The River Building, Level 1 Cannon Bridge House, 1 Cousin Lane, London, United Kingdom, EC4R 3TE, with company number 08167130.

34 **“Service Pack”** means a service pack which describes specific services which may be provided by Deliveroo, any applicable Service Levels and any special terms and conditions relating to, and the pricing for, the Services.

35 **“Services”** means the services to be provided by Deliveroo to the Restaurant as specified in the Service Pack;

36 **“Site”** means each site from which the Restaurant will process Orders, as set out in the Service Pack.

37 **“Slavery”** means all forms of modern slavery, human trafficking, force labour, child labour, involuntary servitude and debt bondage.

38 **“Software”** means the software installed on the Equipment (of whatever version or format), as supplemented and updated from time to time, including the source code and all Intellectual Property Rights therein.

39 **“Terms”** means these terms and conditions, including the Schedules to them.

Schedule 2 Data Protection

There are two activities in relation to which Deliveroo shares Personal Data with the Restaurant. The first is to enable the Restaurant to process and fulfil Orders, the second is to assist the Restaurant to deal with complaints and Data Subject Requests.

1. DEFINED TERMS

1.1 In this Schedule:

“**Controller**”, “**Processor**”, “**Data Subject**”, “**international organisation**”, “**Personal Data**” and “**processing**” all have the meanings given to them in DP Laws (and related terms like “**process**” shall have corresponding meanings).

“**Complaint**” means a complaint or request relating to the obligations of either party under DP Laws that is relevant to the Protected Data, including any compensation claim from a Data Subject or any notice, investigation or other action from a regulator or Supervisory Authority.

“**Data Subject Request**” means a request made by a Data Subject to exercise any of their rights under DP Laws.

“**DPIA**” means a data protection impact assessment, as described in DP Laws.

“**DP Laws**” means any law, enactment, regulation, regulatory policy, by law, ordinance or subordinate legislation relating to the processing, privacy, and use of Personal Data, that applies to the Restaurant, Deliveroo and/or the Services, including:

- (a) any laws or regulations implementing EU Directives 95/46/EC (Data Protection Directive) or 2002/58/EC (ePrivacy Directive);
- (b) the General Data Protection Regulation (GDPR) (Regulation (EU) 2016/679) and all relevant Member State laws giving effect to or corresponding with the GDPR;
- (c) any judicial or administrative interpretation of any of the above, and any guidance, guidelines, codes of practice, approved codes of conduct or approved certification mechanisms issued by any relevant Supervisory Authority,

in each case, as in force and applicable.

“**DP Losses**” means all liabilities, including: (a) costs (including legal costs), claims, demands, actions, settlements, charges, procedures, expenses, losses and damages; and (b) to the extent permitted by Applicable Law: (i) administrative fines, penalties, sanctions, liabilities or other remedies imposed by a Supervisory Authority or any other relevant regulatory authority; (ii) compensation to a Data Subject ordered by a Supervisory Authority, court or other tribunal of competent jurisdiction; and (iii) the costs of compliance with investigations by a Supervisory Authority or any other relevant regulatory authority.

“**Personal Data Breach**” means a breach of security or other action or inaction leading to the accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to, Protected Data.

“**Protected Data**” means Personal Data received from or on behalf of the Customer for the purposes of placing an Order.

“**Sub-Processor**” means another Processor used by either party for processing activities in relation to the Protected Data.

“**Supervisory Authority**” means any local, national or multinational agency, department, official, parliament, public or statutory person or any government or professional body, regulatory or supervisory authority, board or other body responsible for administering DP Laws.

2. OPERATION

2.1 Deliveroo shall provide through the Equipment to the Restaurant:

- 2.1.1 sufficient details of the Customer’s Order to allow the Restaurant to process and fulfil the Order;
- 2.1.2 details of any allergy information provided to it by the Customer in connection with the Order (“**Allergy Info**”); and
- 2.1.3 customer name and delivery location details, where it is necessary to use the Equipment to generate a label to be affixed to the Order,

(together, the “**Order Info**”).

2.2 The Restaurant shall:

- 2.2.1 make a record of any Allergy Info provided against the relevant Order number (not the Customer name);
- 2.2.2 not attempt to access or use any Order Info more than 48 hours after the Order was placed (or permit any other person to do so); and
- 2.2.3 not otherwise process the Order Info for any purpose other than fulfilment of the Order, and in particular shall not copy or record for its own purposes any Protected Data.

2.3 If the Restaurant reasonably requires access to the Protected Data following the date of this Agreement for lawful purposes to:

- 2.3.1 deal with a Customer complaint; or
- 2.3.2 respond to a Data Subject Request,

(together, the “**Agreed Purpose**”), then Deliveroo shall, upon written request, provide Restaurant with access to the Protected Data to the extent required for the Agreed Purpose.

3. DATA PROCESSING OBLIGATIONS

- 3.1 The parties acknowledge and agree that, in respect of the Protected Data, each party is an independent controller in common (and not a joint controller).
- 3.2 Each party shall comply with DP Laws and its obligations under this Agreement in connection with the processing of Protected Data. The Restaurant shall only use Protected Data for the purpose of processing fulfilling the Order in accordance with paragraph 2 or for the Agreed Purpose.
- 3.3 Applicable DP Laws may in the future change, or be scheduled to change, in a way that either party considers this Agreement is no longer adequate for the purpose of the data sharing arrangements envisaged hereunder. In such circumstances, upon request by either party, the parties (acting reasonably and in good faith) shall promptly meet to discuss, agree and document appropriate changes to the Agreement.
- 3.4 Each party may deal at its discretion with all Data Subject Requests and Complaints that it receives directly from a Data Subject or the person making the Complaint. The Restaurant shall notify Deliveroo of Data Subject Requests within 3 days of receipt by the Restaurant of such Data Subject Requests.
- 3.5 Each party agrees to provide reasonable and prompt assistance to the other party as necessary to enable the other party to comply with Data Subject Requests and/or to respond to any other queries or Complaints received from Data Subjects or Supervisory Authorities and, in each case, related to the Protected Data.
- 3.6 In respect of any Personal Data Breach (actual or suspected) related to the Protected Data, the Restaurant shall notify Deliveroo of the breach without undue delay (but no later than 24 hours after becoming aware of the Personal Data Breach) and provide Deliveroo without undue delay (wherever possible, within 24 hours of becoming aware of the breach) with all details relating to the breach as Deliveroo reasonably requires.
- 3.7 To the extent permitted by Applicable Law, neither party shall:
- 3.7.1 notify a Supervisory Authority or Data Subject of any Protected Data Breach; or
- 3.7.2 issue any public statement about or otherwise notify any Data Subject of any Protected Data Breach,
- without first consulting with, and obtaining the consent of, the other party, such consent not to be unreasonably withheld or delayed.
- 3.8 The Restaurant shall not retain or process any Protected Data for longer than is necessary in connection with carrying out the Agreed Purpose, or, if longer, to adhere to its binding requirements under Applicable Law.
- 3.9 The Restaurant shall without undue delay, and at Deliveroo's written request, either permanently and securely delete or securely provide all of the Protected Data to Deliveroo once processing by the Restaurant of the Protected Data is no longer required for a specific Agreed Purpose. This requirement shall not apply to the extent retention and storage of any data is required for the Restaurant's own legitimate record keeping purposes or by Applicable Law (in which case the Restaurant shall ensure that such retention and storage is in compliance with DP Laws).

- 3.10 Each party (the "**Indemnifying Party**") shall indemnify and keep indemnified the other party (the "**Indemnified Party**") in respect of all DP Losses suffered or incurred by the Indemnified Party, arising from or in connection with any breach by the Indemnifying Party or any of its Data Processors and sub-Processors of its obligations under this Schedule.
- 3.11 Each party shall provide reasonable assistance, information and cooperation in connection with the Protected Data to the other party to assist the other party to ensure compliance with its obligations under DP Laws.